

From : info@ethichawks.co.za

To : <support@whistleblowerhouse.org>,<info@whistleblowerhouse.org>

Cc : <cynthia@whistleblowerhouse.org>,<ben@whistleblowerhouse.org>,<marco@schroterlaw.co.za>

Subject : URGENT: Ongoing Humanitarian Crisis, Retaliatory Legal Assessment, and Institutional Complicity – Wilbur Matthee

Date : 18 Jun 2026 17:43

Dear Tsholofelo and Management of The Whistleblower House,

I am writing to place on official record the ongoing, severe harm caused by your refusal to assist me, and to formally expose the profound ethical collapse and bad-faith retaliation that led to the closure of my file in March.

Despite your organization's mandate to protect whistleblowers from detriment, you allowed a compromised, fired legal advisor to sabotage my case. The actual legal facts today stand in total opposition to the opinion he used to dismiss me.

Escalation to the National Assembly and Statutory Failure

Please be officially notified that The Whistleblower House has been included in a formal forensic portfolio being compiled for the Speaker of the National Assembly. Your organization is designated as one of 11 specific institutions that have fundamentally failed their statutory mandate to protect citizens and uphold accountability. This digital timeline, along with the proof of your internal legal failures, is being finalized for parliamentary oversight committees.

The Crux: Retaliation Within The Whistleblower House

The assessment issued by Mr. van der Walt was not an objective legal evaluation; it was a documented act of personal retaliation.

The Security Breach: On 20 February 2026, I flagged a severe security breach to Mr. van der Walt regarding the total disappearance of critical emails from my inbox, including correspondence from the CCMA Provincial Senior Commissioner and regulatory bodies.

When Mr. van der Walt entirely ignored this breach, I called him out for his negligence and requested that The Whistleblower House assign me a new lawyer. I officially terminated his services.

It was only after I fired him that Mr. van der Walt issued his highly flawed, dismissive assessment. He did so in bad faith, using his position to retaliate against me for exposing his failure to protect my data security.

The Whistleblower House stood by, ignored my real-time alerts, and allowed a terminated, conflicted advisor to dictate the fate of my file. You used a retaliatory hatchet job to justify shutting your doors on me.

Current Legal Realities vs. The Fabricated Assessment

The victories I have achieved since March prove that Mr. van der Walt's assessment was a legal fiction designed to escape his duties:

Unlawful Deductions: I currently have a default judgment in front of a judge regarding the unlawful salary deduction. While your lawyer claimed this was a standard "no-work no-pay" principle requiring no consent, the courts are treating it as the unilateral, unlawful Basic Conditions of Employment Act (BCEA) violation it is.

LRA / PDA Claim Standing: Your advisor claimed I would not meet the threshold for an automatically unfair constructive dismissal. In reality, the employer currently lacks locus standi for the LRA/PDA claim; their affidavit is a procedural nullity completely lacking a supporting affidavit. They have no case.

Dismantling the Ignored Defenses

In March, I sent a comprehensive rebuttal to Mr. van der Walt which was completely ignored by your organization. My defenses on the merits of my disclosures remain unassailable:

The GEXUS System & Patient Risk: Your advisor dismissed a massive systemic failure putting 1.9 million lives at risk as a "single isolated system glitch." My root-cause analysis proved a platform integration failure that falsely flagged compliant, vulnerable chronic patients as non-adherent. As a Specialist Registered Nurse, my ethical refusal to participate in the clinical victimization of a 75-year-old patient was framed by management as "insubordination." This was a textbook protected disclosure that directly triggered occupational detriment.

The Fabricated "Bad Faith" Claim: Your advisor claimed my external escalation to oversight bodies was done in "bad faith." In reality, these escalations were made precisely because internal channels were being weaponized against me to cover up systemic risks. My actions were driven by clinical duty; your advisor's accusation of "bad faith" was a mirrored reflection of his own conduct.

Constructive Dismissal: Your advisor claimed I did not exhaust internal remedies before my December 2025 resignation. The documented email trails prove that the environment had been rendered objectively unbearable and toxic as direct retaliation for my disclosures, leaving me no alternative for my own professional and personal survival.

The Active Humanitarian Crisis and Legal Detriment

Because you accepted a tainted legal opinion and abandoned me, the detriment I am suffering is an active, ongoing humanitarian emergency.

While I hold legal victories against my employer, I am currently destitute, homeless, and starving because you denied me the basic necessities and mental health support I begged for.

The real-world consequence of your abandonment is that I have already missed two critical court hearings purely because I had no transport money. The litigation has been weaponized through cruelty, and because I regular go 2 to 3 days without food and have no means of travel, I was physically unable to step into the courtroom to defend myself. I cannot even access a SASSA office to apply for relief because I cannot afford the taxi fare to get there.

The harm your negligence has caused is real, active, and catastrophic. You left a vulnerable whistleblower exposed to the wolves, and you will be held accountable for the secondary victimization you have perpetrated.

Sincerely,

Sr Wilbur William Matthee
RN | BTech General Nursing | Psychiatry | Midwifery | and Community Health | PGDip Health Services Management (NQF 8)
Founder – EthicHawks Forensic Governance & Compliance Consultancy
info@ethichawks.co.za | 069 635 1435

Developer — Wilbur Method™ Forensic Framework | PalCare Clinical Governance Platform
CI (SA) Compliance Practitioner (Associate) — CISA Pledge to the Code of Ethical and Professional Conduct
Compliance Institute of Southern Africa (CISA) | Membership Designation: CPrac(SA) — Pending Final Certification Modules
<https://www.ethichawks.co.za> | Cape Town, South Africa

Ethical Pledge Statement: While my formal membership designation with the Compliance Institute of Southern Africa (CISA) is pending completion of the final certification modules